



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Brandon T. Gilchrist
Subject: PUDC-24-219 | Planned Unit Development (PID) (Ordinance #4274) Harmony Valley, 1st Filing: Lot 1, Block 10 and Interior Heights, 4th Filing: Lot 1, Block 1 Cheyenne, Wyoming – Zoning Map Amendment
Date: December 9, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 12/9/2024
- Public Services Committee 12/17/2024
- Second reading 12/23/2024
- Public Services Committee 1/7/2025
- Third and final reading 1/13/2025

Planning Commission Recommendation:

The Planning Commission heard this item at their December 2, 2024 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM PLANNED UNIT DEVELOPMENT (PUD) (ORDINANCE #4274) TO NR-3 NEIGHBORHOOD RESIDENTIAL – HIGH DENSITY FOR LAND LOCATED NORTH OF WEST COLLEGE DRIVE, SOUTH OF WEST ALLISON ROAD, AND WEST OF WALTERSCHEID BOULEVARD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on December 2, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 10, Harmony Valley, 1st Filing and Lot 1, Block 10, Interior Heights, 4th Filing, Cheyenne, Laramie County, Wyoming is hereby changed to NR-3 Neighborhood Residential – High Density.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(SEAL)

PATRICK COLLINS, MAYOR

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



(Phone) 307-637-6282 (Fax) 307-637-6366

STAFF REPORT

RECOMMENDED MOTION:

Move to **approve** the rezoning of 44.16 acres of land northwest of the North of W College Dr, South of W Allison Rd in between York Ave and Concerto Ln as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from PUD to NR-3 Neighborhood Residential-High Density for 44.16 acres of vacant land.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-Use Residential and Urban Residential	PUD-Planned Unit Development Ordinance 4274	Vacant
North	Public	P-Public	Public School
South	Public and Mixed-Use Commercial	MUB- and CB- Community Business	Multi-family and School
East	Urban Residential	Two PUDs, Ordinance 4274 and Ordinance 3501	Single-family
West	Mixed-use Residential	PUD-Ordinance 4274	Single-family and Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne actively promotes growth within the urban service boundary, optimizing the use of existing infrastructure. This particular property is situated within that boundary, benefiting from established infrastructure in the area. The Future Land Use Designation for this site is classified as Mixed-Use Residential and urban residential, both supporting higher-density housing. The NR-3 zoning designation further facilitates the development of such housing, aligning with the goals of enhancing community growth and sustainability.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The proposed zone change application is fully compatible with the area's existing regulatory framework and planning objectives. The surrounding environment is predominantly residential and public, which aligns with the intended uses outlined in the Comprehensive Plan.

Additionally, the application adheres to the current zoning regulations and supports the community's vision for development, ensuring that it complements the character and functionality of nearby properties. Therefore, this application is consistent with the established zoning, the Comprehensive Plan, and other official policies designed to guide land use in this area.

The proposed zone change **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The proposed zoning change application is most suitable for development under the new classification. This change would enhance the property's potential for diverse development opportunities and align with current market demands and the objectives outlined in PlanCheyenne.

By transitioning to the proposed zoning district, the property can better accommodate modern housing needs and community growth, ultimately contributing to a more vibrant and sustainable environment than what is permitted under the existing zoning regulations.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The proposed NR-3 zone is intended to have smaller blocks and significant restrictions on front-loaded housing – encouraging rear-loading property. Due to the large area of land proposed with this zoning and due to the currently-vacant nature of that land, there is plenty of opportunity for this area to meet the applicable standards of article 4 applicable to the proposed NR-3.

The proposed zone change **complies** with review criterion 4.

- 5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)**

The intent of the NR-3 zone is to create high-density residential neighborhoods. This district is applicable in areas where high-density residential development is desired within the Urban Residential future land use designation. The context encourages NR-3 zoning to be within a

quarter-mile of activity centers, and in areas with a highly-connected street network. The NR-3 zoning applies the design standards of 6.6 – including Compact and Mixed-Density Neighborhood Design and Cottage Lots.

The application for the proposed zoning change effectively supports the proposed district's Intent and Applicability statements while striving to achieve the Design Objectives outlined in the specific standards.

By aligning with the goals of the proposed zoning district, the application promotes smart growth principles and enhances the area's overall design quality.

Furthermore, the proposed zoning allows for flexibility in design, which is essential for meeting the specific standards outlined in the zoning regulations. This flexibility will enable the development to incorporate innovative design solutions that enhance the neighborhood's character while fulfilling the community's needs.

The proposed zone change **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The application demonstrates a strong ability for all potential future development to meet the applicable standards for development in the proposed zoning district. This includes ensuring compliance with regulations related to land use, density, design, and infrastructure, which are essential for any development project.

The proposed zoning change allows for flexibility in development options. If the specific development initially proposed with the application is not executed after approval, the property can still accommodate alternative development plans that adhere to the zoning standards. This adaptability is crucial for maintaining the property's viability and ensuring that it can evolve with changing market conditions and community needs.

Overall, the application is well-positioned to support a range of development possibilities while ensuring compliance with the necessary standards, thereby promoting sustainable growth within the community.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major comments were received regarding the proposed zone.

The proposed zone change **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

The application for the proposed zoning change is unlikely to harm public health, safety, or general welfare.

The proposed zone change **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

The property in question features a combination of mixed-use and urban residential designations, indicating that a more intense residential zone would be suitable. While it may not be within convenient walking distance to commercial centers, it is in close proximity to several schools, enhancing its appeal to families.

Additionally, the property is located adjacent to York Avenue, which is classified as a collector street, facilitating access to surrounding areas. It's important to note that this proposed zone change would involve dividing a Planned Unit Development (PUD); however, the existing PUD is primarily residential in nature, aligning with the intended use of the area.

CONCLUSION:

Staff is satisfied that the application for the NR-3 zone meets the review criteria outlined in UDC 2.2.1.(d).

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

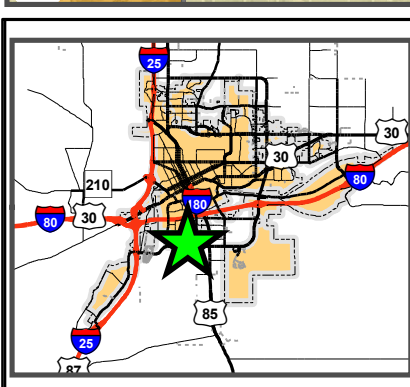
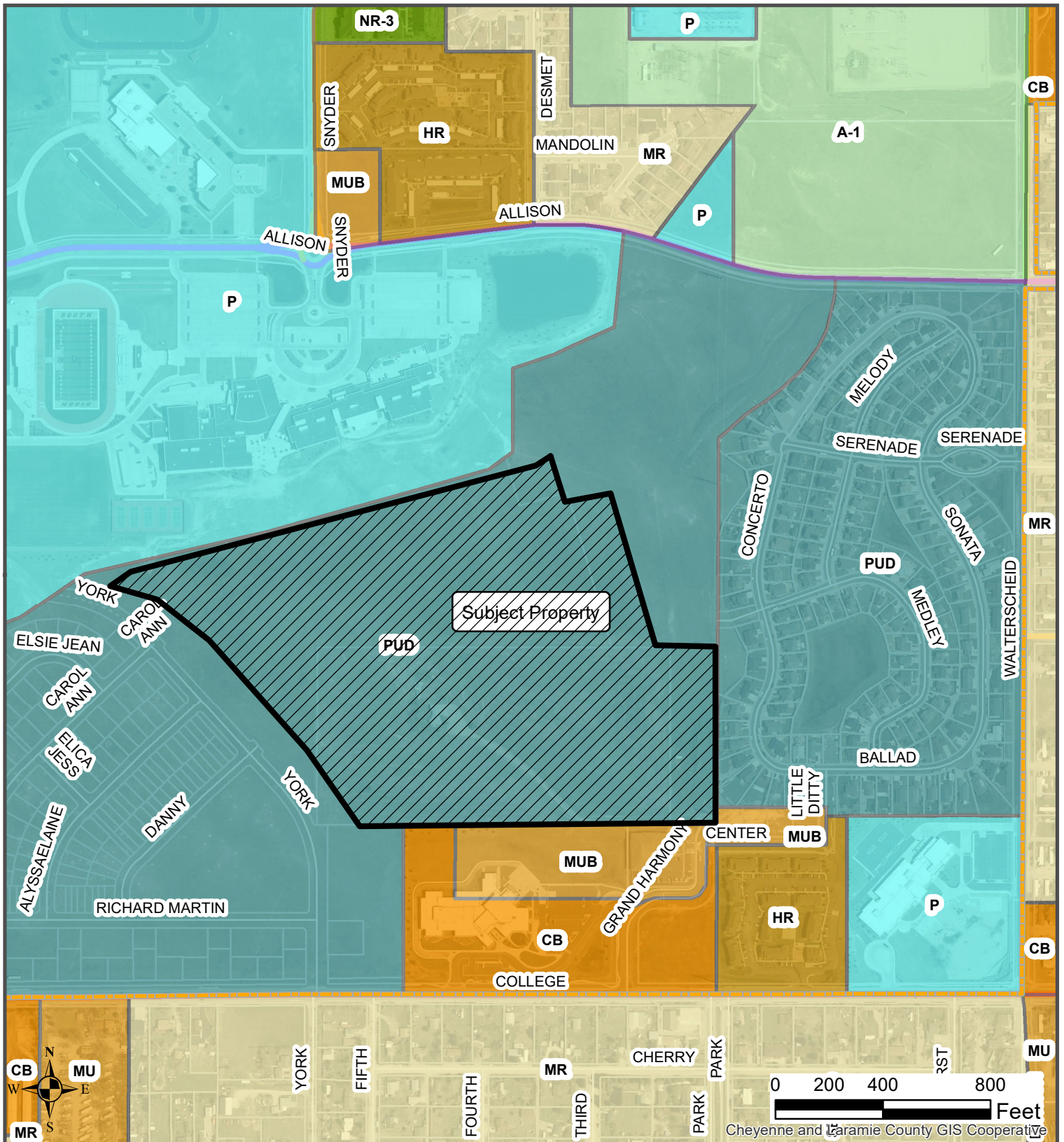
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from PUD to NR-3 Neighborhood Residential -High Density.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

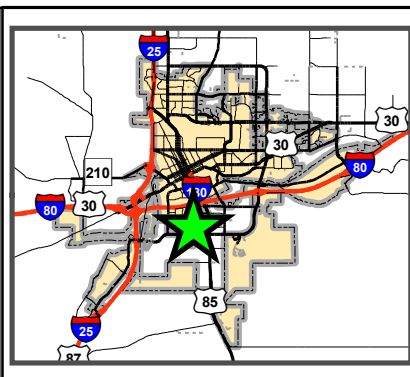
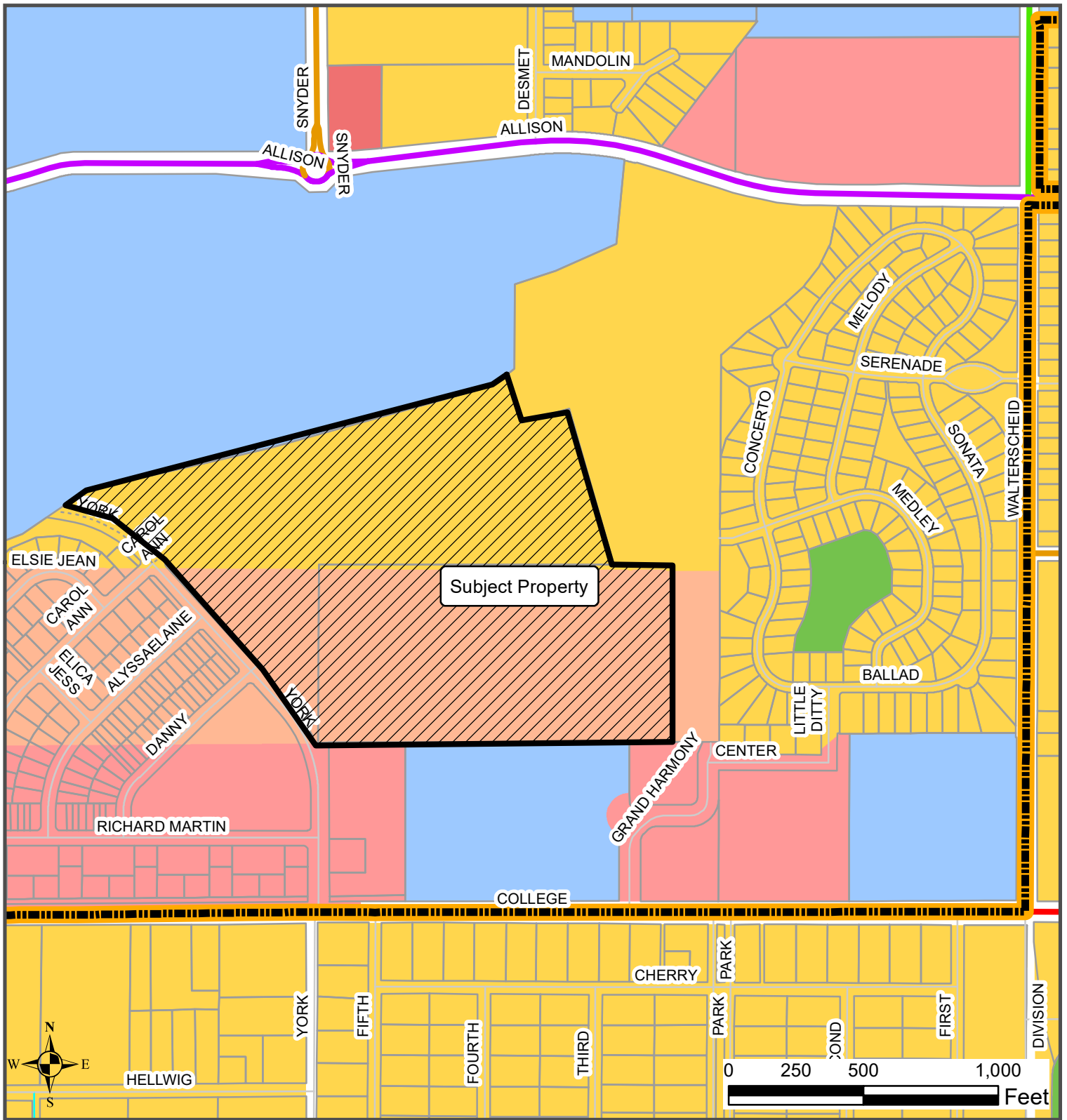


Attachment 1: Zoning Map PUDC-24-219

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-24-219

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Legend

	CHEYENNE		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Private				
	Platted not built				
	Ownership				

PUDC-24-219
Zoning Map Amendment
Status: Active
Submitted On: 11/13/2024

Primary Location
0 YORK AVE
Cheyenne, WY 82007
Owner
TRU GRIT LAND DEVELOPMENT LLC
140 WALTERSCHEID BLVD CHEYENNE, WY
820072370

Applicant
 John Sayers
 307-214-3093
 jsayers@mhbwy.com
 140 Walterscheid Blvd
Cheyenne, WY 82007

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* 	Proposed Zoning* 
Harmony Valley East ZC	NR-3 Neighborhood Residential – High Density

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

- | | |
|--|--|
| <p>The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*</p> <p>☒</p> | <p>The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*</p> <p>☒</p> |
| <p>The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*</p> <p>☒</p> | <p>The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*</p> <p>☒</p> |
| <p>The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*</p> <p>☒</p> | <p>The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*</p> <p>☒</p> |

The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*

☒

Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



John Sayers

Nov 13, 2024

Attachments

	Draft Neighbor Notification Letter LTR to Neighbors.pdf Uploaded by John Sayers on Nov 13, 2024 at 9:52 AM	REQUIRED
	Neighbor Notification List Neighbor List for HV East Addition.pdf Uploaded by John Sayers on Nov 13, 2024 at 9:52 AM	REQUIRED
	Photos of Posted Notice York Street Posted Signs.pdf Uploaded by John Sayers on Nov 25, 2024 at 10:15 AM	
	Mailed Notice img20241121_14311677.pdf Uploaded by Brandon Gilchrist on Nov 21, 2024 at 2:36 PM	
	24-219 ApplicationLetter.pdf 24-219 ApplicationLetter.pdf Uploaded by Brandon Gilchrist on Nov 15, 2024 at 2:39 PM	
	img20241121_14311677.pdf img20241121_14311677.pdf Uploaded by Brandon Gilchrist on Nov 21, 2024 at 2:35 PM	
	img20241121_14314255.pdf img20241121_14314255.pdf Uploaded by Brandon Gilchrist on Nov 21, 2024 at 2:35 PM	
	Letter of Authorization Letter of Authorization Signed.pdf Uploaded by John Sayers on Nov 13, 2024 at 9:52 AM	REQUIRED
	Proposed Zoning Map ZC for HV 1st Filing East Portion ZC (1).pdf Uploaded by John Sayers on Nov 13, 2024 at 9:52 AM	REQUIRED

